CHAPTER - I

CHAPTER - I

EVOLUTION OF TAHASIL ADMINISTRATION IN ODISHA

In order to study the evolution of Tahasil Administration in Odisha, it is necessary to start with an examination of the concept of Administration and the Organisation of Tahasil Administration in India and Odisha in order to focus attention on the advent of Jajpur Tahasil. Tahasil Administration in India on board lines of development of Revenue Administration in the Country in the Post independence period is similar and common, thought not uniform in the provinces. To overcome the diversities of land Tenure system, abolition of Zamindary, Roitwari systems and land Reforms with a view to bring about Socio-economic revolution in the agrarian field by implementation of various land Reform measures, Tahasil Administration have become the permanent unit.

Jajpur the political capital of ancient Odisha give birth to Tahasil Administration which is the oldest in the state being organised as such on the 27th Nov, 1953.

1.1. THE CONCEPT

"The Increase in variety, number and Complexity of functions that have to be performed by the modern state has resulted in an administrative lag. A serious imbalance exists between aspirations and performance, between the needs to be met and the adequacy of the Administrative machinery to carry them out and to meet even a part of its growing responsibilities. The modern service state must develop the Administrative capacity to implement its programmes of economic and social progress".[1]

"Administration is a process permitting all collective effort, be it public or private, Civil or military, large scale or otherwise, and is thus, of Universal nature . It is a Co-operative effort, directed towards the realisation of a

1. Avasthi & Maheswari, 2001, Public Adminstration, Laxminaryan Agarwal, Agra-P-2.
2. Ibid, PP-3-4
3. Tead, ordway, Administration ; Its purpose and performance, New Yourk, Harper & Brothers, 1958 P-67.

consciously laid down objective". [2] "Administration is a moral act and administrator is a moral agent" [3]

"Government has been allocated tasks either that markets are unable to fulfil or that are not deemed appropriate to the private Sector".[4]

"Administration is the organisation and direction of human and material resources to achieve desired ends".[5]

"It is determined action taken in pursuit of conscious purpose. It is the systematic ordering of affairs and the calculated use of resources, aimed at making those things happen which we want to happen and simultaneously preventing developments that fail to square with our intensions". [6]

"Administration, primarily is the direction of the people in association to achieve some goal temporarily shared. It is the inclusive process of litigating human efforts so that a desired result is obtained". [7]

"There should be a science of administration which shall seek to strengthen the paths of Government, to make its business less on business like, to strengthen and purify its organisation, and to crown its duties with dutifulness. [8]

"The term 'Administration' is also used in a narrower sense to refer to those patterns of behaviours that are common to many kinds of cooperative groups and that do not depend upon either the specific goals towards which they are Co-operating or the specific technological Methods used to reach these goals". [9]

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4. Perry, Jamc L. (Ed), Handbook of public Administration, san Fransibco, Jessy Bass publishers, 1989. P-5.
5. Pfiffner, John M & Presthus, R. Vance Public Administration, New York, Ronald Press P-3.

So also Luther Gulick observes that "Administration has to do with getting things done, with the accomplishment of defined objectives". [10]

So it may be described that administration is the organisation and use of men materials in the pursuit of a given objective. In this sense the area of administration is vast, in the sense that it is not confined with the Physical area but it is concerned with the entire philosophy of life of human being. In this sense Administration is also philosophical rather than practical. It is philosophical in the sense that it leads to much more wide spread professional, self Consciousness and Convinced sense of direction and social justification.

Administration is also concerned with ends and means. A goodadministrative system should communicate spirit and rounded feeling of wide spread satisfaction.

Administration embarrasses not only the public service but enterprises of every size and description, of every form and every purpose.

REVENUE ADMINISTRATION

"Just as a house hold camp be managed without fund, Government as the manger of the Society can't function without an assured source of fund. The Government mobilises resources through taxation, fees and charges and other means. The revenue thus, raised is societies or public money. There is, therefore a latent understanding that the society is providing fund to the Government on condition that money so raised for society will properly spent for public purpose".[11]

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6. Marx, Fritz Morsten (Ed), Elements of Public Administration, New Delhi, Prentic - Hall of India, 1964, P-4.
7. Tead, ordway, OP Lit. P-2.
8. Woodrow Wilson, "The study of Administration" in Dwight waldo (Ed) Ideas and issues in public Administration, MC Graw - Hill, 1953.

"Administration and finance are as inseparable as a body and its shadow. All administrative acts involves expenditure of money, at list, for hiring the necessary personnel to carry out the task". [12]

"All undertaking depend upon finance. Hence, foremost attention shall be paid to the treasury".[13]

"Land system or Land revenue system refers to the system that governs the rights of the state to Land revenue and the rights of various categories of people to the Land". Revenue administration involves operations, design to raise, spend and account for funds needed to be expended on public services. Sound financial management is there for vital importance to Government As revenue is derived even from humblest citizen, it is moral incumbent upon the Governemnt to spend money efficiently and economically.

Finance lubricates the wheels of Administration. There can be no administration without finance as there can be no atmosphere without oxizen. Financial Administration includes Collection of revenues, Various kinds of taxes, fees, fines in its sources of income. Thus, revenue Administration is regarded as a part and parcel of financial Administration. Finance is thus the fuel for the engine of Administration, whether union, State or Local. Revenue Administration is of great importance for the Government because of the major increase in the amounts of money expended for public services. So sound principles and techniques are essential for revenue administration.

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9. Simon Simithurg & Thampson, Public Administration, OP Cit P - 4.
10. Gulick, Lather, OP Cit. P-191.
11. Bhattacharya Mohit, 2008, New Horizons of public Administration, Jawahar Publisher and Distributors, New Delhi, P-363.

1.2. TAHASIL (REVENUE) ADMINISTRATION IN INDIA

In connection with revenue administration, reference may be made to the ancient Indian polity because polity covered the political and economic activities. In other language political and economic activities were extended by polity. Thus, all financial and revenue activities are collected from ancient Indian Polity.

The sources of our information regarding Indian polity extend over the vast field. Hindu literature, Scattered passages in the vedic literature are useful for our purpose. Financial or revenue administration was combined with polity. The Rigveda gives some material but the Atharva Veda gives much more informations regarding polity. There are also references to the followers of the king and the sources of his income. According to Mahabharat, Bramha Deva composed a big treatise on politics covering all activities of the state and Government. The same was abridged latter on by Visalakshya, Indra, Brihaspati, Sukra and Bharadwaja, Parasara and Manu.

The Shanti Parva of the Mohabharat deals with the Raj-Dharma or the duties of the king and the Government. The importance of the Science of Politics is emphasised. A lot of space is devoted to taxation. Here in Mahabharat the different sources of taxation which may be regarded as revenue system are referred.

Manu is regarded as the father of ancient Indian Political thought. He is regarded as the first law giver of mankind. To the whole world the code of Manu or Manusamhita is the best known work of its own kind. Manusmhita, in Chapter-VII deals with revenue administration i.e. payment of taxes, punishment

12. Avasthi & Maheswari, 2001, Public Administration, Laxminaryan Agarwal Agra, P-459.
13. Kautilya, Arthasastra (Translated by R. Shamasastry), Mysore, Raghubir printing press, 1956, Chapter-VIII, P-65.

to corrupt officials. In Chapter-VIII deals with loans and interest, trade and business, duties of the state towards ill-fated women etc. Manu say "a king who protects his subjects receives from each and all praise and the right to Collect taxes. A king who does not afford protection will soon sink in hell". Thus, Manu has given importance on financial administration which is connected with revenue administration.

Kautilya is regarded as profounder of Indian polity. His monumental work 'Artha Sastra' is more a manual for the administrator than a theoretical work on polity discussing the fundamental principles of administration with the practical problems of the Government and describes its mechinary and functions. As its title derives, Arthasastra also deals with economic activities dealing with sources of income, heads of expenditure i.e. revenue administration. The manuscript of Athasastra is a curious mixure of Sociology, economics, ethics and statecraft. In Artha Sastra Book-V (Adhikaran) discusses the Conduct of Countries, rules of Treasury, salary of Government servant and consolidation of Kingdom. Here he writes "Artha is the condition of men, i.e. the inhabited part of the earth, and the Sastra (normative science) which aids the acquisition and protection of such (inhabitant) Country is the Arthasastra".

Kautilya describes seven elements of the state in which Kosa or Treasury is one. Treasury has a great role to play for the development of a welfare state. The growth of treasury can be achieved by agriculture, Commerce. Collection of taxes and efficient functioning of various departments run by the state Treasury helps people during natural calamities, it deals with revenue administration. Treasury has a great role to play in financial management of the State. Kautilya regards the treasury as the most essential element of the state. In Arthasastra it is mentioned that the king should keep the treasury full. Taxes should be levied on people in due consideration of their difficulties but no inconveniency should be shown in collection of taxes. There should be proper

maintenance of a accounts of taxes received in the treasury and spend the money wisely. At emergency in financial difficulties the king may ask for help to different Classes of people and may Collect taxes at an increased rate from the Cultivators, traders and persons having domestic animals. The king may take the help of force and framed to fill-up the royal treasury. In this way kautilya has described the ideas about financial administration connected with revenue. In India, it has been practice since time immemorial for the cultivators to pay to the state tax amounting to 1-10th, 1-8th or 1-6th of the produce. Kautilya recommended 1-6th of the total land produced to be collected as land revenue by the state. A justification for land revenue is best provided by the celebrated poet Kalidas, who in his immortal work Raghubansa opined "just as the sun takes moisture from the earth to give it back a thousand full so the king gathers taxes from the people only to provide for their wellfares".(14)

There is a lot of speculation about the origin of revenue administration in India after A.D During the Muslim rule in India the idea of revenue administration was concieved "With the advent of Muslims in India, original thinking stopped among the Hindus. However a few digest on politics were prepared. Some of them were Laxmidharas Rajanitipataru (C-1125), Devana Bhatta's Rajanitikanda (C-1300), Chandeshvara's Rajanitirathankara (C-1326), Bhoja's Yuhtikalatar (C.1025), Nilakantha's Nitimayukha and the Rajanitiprakasha of Mitramisra. Rama Chandra, a minister of Sivaji wrote in marathi a treantise on politics but it had absolutely no originality". (15)

"The historical evidences which has come to light so far about the administration of ancient and Mediaval Orissa do not provide us with adequate matterials on the basic of which we can form a clear idea of the revenue administration in these days". (16)

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14. Maheswari S.R. 2001. Public Administration India, P-255.
15. Mahajan V.D., S.Chand & Co. Ltd. Ancient India, 2007. P - 203.
16. Dash Giridhari. Nabajeeban Press. The Land Systems and Land Reforms in Orissa 1989. P-3.

As is found from different inscriptions before Afgan and Mughul Rulers, the revenue administration was carried on through, local knowledge of the officials. This means the revenue was fixed in different localities according to local productions. The kingdom was divided into Mandal as (like provinces), Mandala into Vishaya D (Like Modern district). These Vishyas were also named as Bhoga, Bhakti, Khanda and panchali etc. The grass-root unit of loan revenue system was Grama or Village. The designation of these revenue divisions was changed from Mandal to Dandapat, Vishya to Bisa or Bisi.

The Authorities of these revenue divisions got change during the early period such as Mandalas - Mandala Adhipatis, Vishyas into Vishyaspati Bhogas in to Bhogikas. The chief revenue officer of Bisa was called Bisoi. To assist him one accountant-cum-record Keeper whose title was Bhoimul was appointed. The Khandas were under the Khandapats or Khanduals. As is described before, the smallest revenue unit was Grama or Village. The heads of Villages were known as pradhana's and the revenue accountants as Bhois.

"The land systems in India has been highly intricate and complex governs as it does the right of the State to land revenue and the rights of various classes of people to the land. There is not one system in India, there are hundreds of them in operation, being essentially the product of history, geography, climate and local conditions. Differences have existed not only within a state but also within a district.

These have been the three main patterns of land revenue administration in India, which have historical relevance now, Independent India has done away with all sorts of intermediaries between the state and cultivator. The state has forged direct relationship with the tillers of the land.

In Independent India, the land system has under gone far reaching reforms or change - the Zamindari system has been reformed. Intermediaries between the state and the peasant have already been abolished. One may, thus, say that today it is the rayatiwari system of land administration that prevails all over India. As such, the cultivators make direct revenue payments to the state. But even now, some distinctions do obtain-the Uttarapradesh Government has to day four classes of cultivators, Bhumihars, Sirdars, assamees and lesses. Bhumihars possess full heritable and transferable rights. Sirdars have restricted rights. Assamees are sub-tenants or tenants holding land in government land or estates. In Madhya Pradesh the tenants fall in three categories - Bhumiswamis, Tenants and Lesses. In some states Crop sharing continues. One must note that land reform laws have been enacted in various states but not all of them have been effectively and fully enforced. A glaring example is the land ceiling law. Permanent settlement has been abolished and the government possesses the right of making periodic settlement". (17)

"The early Hindu rulers of Orissa recognised no middlemen between them and their subjects and every cultivator was bound to pay his sovereign a fixed share. The share varied from 1/12 to 1/4th of the gross produce of the land. Though land revenue was the main source of King's income, he levied various taxes to supplement the income. The available historical materials of the ancient and mediaval period do not provide us with evidence which might help in determining the system followed for assessment of land revenue. The fertility of the land, irrigational facilities were probably two main considerations of assessment of revenue". (18)

"The Hindu System of revenue administration involved a close scrutiny and local knowledge with its inevitable checks and counter check easy

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17. Maheswari S.R. Public Administration in India.
18. Dash Giridhari, Nabajeebani Press. The land systems and Land Reforms in Orissa. 1989. P-04.

to be enforced by a hereditary prince. It has thus little use for an intermediate class of proprietors interposed between the state and the cultivators. The Muslim invasion of India began in the eleventh century and their settlement in this Country started in the nature of military colony. Being foreignres by birth, by religion and by language and being constantly engaged in war the Muslim rulers found it possible to continue a system that demanded close and constant supervision. They naturally preferred a system of intermediate land - holders who having both power and influence would take the trouble of enforcing the revenue demand against individuals. In the Hindu officers they found such a body of persons. Thus, the persons who under the Muslims a fixity of office and a great degree of power, prestige and independence of action that prepared the way for their development into landed proprietors in the British period. In the up keep of a magnificients Court, the Muslim rulers were perpetually in need of money, with the result that the revenue demand went on increasing so as to meet the increased expenditure of the sovereign. That newly created landed proprietors then found it convenient to farm out their entire "estates" or parts thereof a natural corollary of the system of landed proprietorship - thereby getting rid of the annoying job of enforcing the revenue demand against a large number of cultivators. The Muslim conquest thus led to the system of intermediate land holders and of farmers and enters. At the British Conquest, this system as naturally found to be more developed in the areas that had come under the Muslim rule earlier and continued as such for long". [19]

"As is well known the East India Company Come to India as a trader but remained as a ruler. It had wrested the right of diwani from the failing hands of Emperor shah Alam in the year 1765. As a result the East India Company acquired the right of Collecting land revenue of Bengal, Bihar and Orissa in lieu of Rs.26 lakh per annum to Emperor. The grant of diwani gave to the East India Company for the first time a legal status in the administration of province.

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19. Mishra Bimal Kishore, Board of Revenue, Orissa, Land Tenure and Land Reforms in Orissa, 1962, P-02.

The East India Company however, did not stand for. Thus, the diwan had actually took up the task of Collecting the land revenue of the province until 1772. But the grant of diwani itself was a status-change. By taking of revenue Collection, the East India Company took over Bengals Civil administration, for diwani in India has always been more than mere land revenue Collection. The East India Company legal status continued to be the Diwan of the Emperor of Delhi until the assumption of the title of the Empress of India by Queen Victoria in 1857. The East India Company addressed itself to the new and novel task of revenue collection by largely following the practices of the day. The Company would have annual reassessment of land revenue and contract was given to tax-Collectors for actual Collection. In other words an annual settlement was arrived at to fix the land revenue from Cultivators. In practice the system became rapacious". [20]

For the first time in the revenue records the word Zamindar is mentioned in Mansinghs settlement of Orissa. We find mention of only 3 Zamindars and all other Feudal Chief were classed in the rank of Khandaits, Sardar's etc. From the days of Akbar till Aurangzeb the title was conferred strictly on the old feudal Lords and Chiefs who were the ancient original Bhuyans, Bhupatis. During the later Maghuls and Marhattas, Zamindar are occasionally created either by separating a number of Villages farm adjoining praganas or by alloting one or more praganas of the Killazat Lands as fixed assignment, to some listing used Chiefs or able revenue officers to answer particular purpose. There were about 5 or 6 instances of this Kind in Cuttack subsequent to Raja Mansinghs time. It was obviously by no means the policy or general practice of Mughul Government to raise up ;a hereditary nobility. They were mostly meant to raise up a good police force and to pay certain fixed revenue. The remuneration to be engaged in return was always indicated such as Nankar, Rossum, or a percentage of Collection. Stirling in his 'An Account of

20. Maheswari S.R. Public Administration in India.

Orissa' give three Cause for their origin and prevalence. He says "on the introduction of British Government and Regulations, all parties whose names appeared in the public accounts of the preceding administration as answerable for or entrusted with collection of the public dues were forth with acknowledged not only as Zamindars but as proprietors of the land comprised in their Zamindari. What ever may be thought of the policy of the administration and the advantages that have resulted from it, that it was founded on an erroneous view of the state of things under the Native Government, seems to be beyond all questions. How did this error which seems to have been as generally prevalent every where else, as in Cuttack Originate. I think, its origin and prevalence may be abscribed to 3 causes, that the want of proper description being made between the rights and Circumstances of the real ancient Zamindars of the Country and those officers called by Mughul Talukdar or by Whatever other name, who exercised hereditarily the management and collection of the revenue of the State, Second, the confused and inaccurate application of the term 'Zamindar' by native of the country themselves long before the accession of the British Government which was probably a principal cause of the want of discrimination above noticed and third, by failure to distinguish between the inheritance and sale of an office and the inheritance and sale of the land with which the office was connected and concerned".

He further adds "If we look to the proper original import of the word "Zamindar" the tenure in question would gave some claims to be considered as involving a right of property in the Soil ; but if not considered the nature of grant by the contents of the sanand or dead itself, which conferred it, we must unhegitatingly class the Zamindari, So created as nothing higher than a Talukdari or more Official trust. Instead of military service, the service enjoined keeping a good policy and paying certain fixed revenue. The old Talukdars where praganas were thus granted continued some time to exist in a dependant capacity, sometimes were altogether ousted or brought out".

According to Stirling, when in later times, the vigour and regularity of the old system become relaxed the choudhury and kanungos, Talukdars came to be known as Zamindars of their praganas. Generally, whilst the Talukdars assumed the little of Zamindars, the proper Zamindars styled themselves as Rajas. At the time of British conguest, Stirling reports, there were seven different grade of persons holding offices and tenures concerned with land who appeared in Collection accounts as Zamindars. They were - (1) The ancient Zamindars (Rajas), (2) Zamindars of Mughul and Marhatta creation holding one or more praganas, (3) Choudhury and Kanungo Talukdars, (4) Mazkuri - Maquadiams, (5) Village accountants called sarabarakars and karjies, who sometimes managed their villages and paid rent to Marhatta Government, (6) The headman of Villages, Containing merely houses with little or no arable lands attached, (7) The holders and proprietors of petty alienated portion of land called Kharida, resumed jagirs, service land etc.

Thus, broadly speaking the Zamindars of orissa were at the time of Brithish acquisition either principal Maquaddams with a hereditary rights of Collection but without any rights, title or interest on the land itself or Government Officers in Charge of Collection.

"The state owned the lands, while individual officers and headman exercised such rights within their respective limits as they chose to assume so long they met the demands made upon them. Numerous alienations were made by all Classes but there was nothing like an acknowledgment of such a privilege by the Marhatta Authority. Those who then or subsequently chose to arrogate to themselves the title of Zamindars were either principal Maquaddams or head men with a here dietary right of Collection but without any right title or interest in the land itself or fiscal officers chiefly choudhurys and knaungos in charge of the Collection".

A system which was introduced by the Mughul Emperors to appease the local chieftains and to take them at bay, began to take root as the

days advanced and become the sheet unchor of the revenue administration for more then three Centuries. The Mughuls had very little time to contain its growth, the Marhattas encouraged it and British Government fondled it with all care and attention despite Vehement protest from their won kith and Kin. Whatever might be the reason for the ascedancy of the system, the fact remains that a system was thrust upon the people which they neither desired nor welcomed".[21]

Mr. S.L. Maddox, I.C.S. the then settlement officer has gives the real picture of the revenue administration in Orissa in the last part of 18th Century in his monumental work 'Final Report on the Survey and Settlement of the province of Orissa, Vol-I, 1892 to 1900 A. D. reprinted under the authority of Board of Revenue, Orissa ; the extract of which is given as -

It has been related how the Maharatta regime and the revenue policy of the first British rulers led to the ruin of many of the Old Uriya families, and it will be interesting to see how far this process of substitution of alien for native proprietor has continued to the present day.

It may at once be said that since about the year 1830 very few estates have passed into the possession of aliens, and, on the other hand, while but few of the Bengali proprietors have lost there estate, several have become practically naturalised in Orissa.

A general idea of the extent to which estates are in the possession of Bengalis and others may be obtained from the following table :-

DISTRICT	NATIONALITY OF PROPRIETORS							
	Percentage at last Settlement				Percentage at last Settlement			
	Hindu Uriyas	Maho medans	Bengalis	Others	Hindu Uriyas	Maho medans	Bengalis	Others
1	2	3	4	5	6	7	8	9
Cuttack	78	7	15	less than IPC	90	5	4	1
Puri	...	...	...	...	95	2	2	1
Balasore	78	10	12	less than IPC	81	7	12	less than IPC

21. Bihar and Orissa District Gazetteeer Puri L.S.S.O Mally : 1929-P-225-226 quoted in Dash Giridahri, 1989, PP. 11-14.

It will be seen that the proportion of Uriya Hindu has increased, but this, I fear, does not mean that the Bengalis have lost possession of many of their estated, but rather that the subdivision of proprietary rights has proceeded more rapidly in the small estates, which are almost all in the hands of Uriyas,

The most marked changes of proprietorship have been :- In Puri, the passing of estates into the hands of the **Muhants** and the big **Mahajan** families. In south Cuttack the gradual absorption of all the small estates by the mahajan families, the Chowdhris of Binjharpur and Gajrajpur and by **mahant Raghunandan Das**. In central and eastern Cuttack the Tagores, the family of Raja Digumber Mitter, a Bengali lady Srimati Arna Purna. Debya, a Mahomedan family of Jessore, and other Bengali zamindars own almost all the big estates, and there have been comparatively few changes of proprietorship in the last fifty years.

In northern cuttack the zamindars are for the most part Uriyas, and the most noticeable feature is the tendency of the estates to pass into the hands of proprietors drawn from the cultivating classes with infinite subdivision of lands and shares.

The big mahajan zamindars of Balasore have also obtained possession of considerable property in the Jajpur subdivision.

To complete the account of the non-Uriya zamindars the following table prepared for all the principal estates with a revenue of over Rs.6,000/- (temporarilysettled) in the province may be interesting :-

District	Name of estate	Land Revenue	Nationality proprietor	Resident or non-resident	REMARKS
1	2	3	4	5	6
Cuttack	Taluk - Patamundai...	Rs.42,756	Bengali	Non-resident	Bought at execution sale in 1865 after several changes of ownership.
	Pandua ...	Rs.20,436	Ditto	Ditto	Bought at private sale in 1811.
	Birsuti ...	Rs.12,054	Ditto	Ditto	Bought in 1833.
	Saibir ...	Rs.22,798	Uriya	Resident	Bought in 1847 at a revenue sale from a Bengali purchaser.
	Tappa - Krishanpur	Rs.8,583	Ditto	Ditto	Bouth in 1818 at a revenue sale.
	Taluk - Krishanpur	Rs.7,796	Bengali	Non-Resident	Bought in 1816 at a revenue sale.
	Mirpur	Rs.6,235	Uriya	Resident	Bought after last Settlement
	Radhmamohan Parshad	Rs.7,889	Bengali	Ditto	Bought in execution slae 1835.
	Nahnrupur	Rs.6,181	Uriya	Ditto	Partly by inheritance.
	Dhaneswar	Rs.8,954	Ditto	Ditto	A number of proprietors, all recent purchasers.
	Bari ...	Rs.8,545	Bengali	Ditto	Purchased from the Raja of Aul in 1868.
	Narayanpur	Rs.9,701	Uriya	Ditto	Bought from the Raja of Aul.
	Narendrapur	Rs.6,888	Bengali	Non-Resident	
	Tappa - Gopalpur	Rs.9,363	Uriya	Resident	Bought at a revenue sale 1805.
	Taluk - Govind Prasad	Rs.6,639	Ditto	Ditto	Bought in 1807 at a revenue sale, was again sold up in 1813 but bought back in 1814.

District	Name of estate	Land Revenue	Nationality proprietor	Resident or non-resident	REMARKS
1	2	3	4	5	6
Puri	Taluk-conclud Kotdes	Rs.1,04,319	Uriya	Resident	This is largest estate in Orissa and only passed out of the hands of the old propreitors in 1896, being bought in by the creditors. They are now recusant.
	Rahang ...	Rs.34,252	Bengali	Non-Resident	These three estates were bought in 1809 by the ancestors of the present proprietors, wo since 1813 have been recusant.
	Krishna chandra ...	Rs.13,792			
	Krishna nagar ...	Rs.19.692			
	Delang	Rs.43,464	Uriya	Resident	The property of the Raja of Puri, restored to him in 1807.
	Kotsahi	Rs.7,320	Bengali	Non-Resident	Bought in 1813 at a revenue sale.
Balasore	Arang	Rs.5,954	Ditto	Resident	These three formed originally one estate of which half was sold in 1838 and half is still owned by the old proprietors.
	Radhashyam pur	Rs.6,109	Uriya	Ditto	
	Bidyadhar pur	Rs.11,200	Ditto	Ditto	
	Padmalochan pur	Rs.15,795	Bengali	Non-Resident	Originally one estate but by a Bengali before the last settlement. Half was sold and the partition made in 1875.
	Prestapurs	Rs.18,341	Ditto	Ditto	
	Mubarakpur	Rs.23,949	Ditto	Ditto	Bought at a revenue sale in 1838.
	Shyamraipur	Rs.9,718	Ditto	Resident	Ditto
	Kalida	Rs.9,559	Uriya	Non-Resident	Purchased in 1812 at a revenue sale, had been several times sold for arrears.
	Jagannath Prasadh	Rs.8,590	Bengali	Resident	

The table shows that of 29 of the principal estates 15 are owned by Bengalis. In Cuttack and Balasore the preponderance of Bengali proprietors is more marked than in the Puri district.

A country is necessarily at a disadvantage when the principal land owners live and spend their money abroad, and though the estates of Bengali proprietors are in general well managed by their resident managers, yet most of these Zamindars live in Bengal and only rarely pay a personal visit to their states. The following statement shows the number of absentee zamindars (vide Appendix) :-

			Cuttack	Puri	Balasore
Hindu	...	....	76	12	271
Mahomedan	...	....	47	5	
Christian	...	....	Nil	3	...
	Total	**....**	**123**	**20**	**271**

It will be observed that but a small proportion of the bengalis are recorded as absentees. Many, such as Lakhsmi Narayan Ray Choudhury and the various zamidar-pleaders have made themselves homes in Orissa; but the most important, the Tagores, the Mitters, Arnapurna Debya and Nagendranath Ray Choudhury all live in Calcutta. It is been the fashion to decry the Bengali zamidar , but however much we may deplore the ruin of old families (there were really very few old families in Orissa outside the Rajwarah) it can hardly base said that the country as whole is a loser. Probably the most mismanaged estates in the province are those of the Raja of Puri, and though he has given way before the **Mahantas** or the **Mahajans** these in their turn cannot present to such good management as is to be found in the large estates of the Tagores or the Mitters. The most oppressive Zamindar near Cuttack is a Uriya of old family, while in the property of his Bengali neighbors the raiyats are treated with much

consideration. So, too, the history of the estates of Kujang, Kanika and Aul show the native management at a great disadvantage as compared with that of the zamindaris of Tiran, Harispur, or Utikan.

The growth of petty proprietorship in the north of the district must doubtless tend to increase the average welfare of the population, though it gives trouble to the Collector and complicates revenue accounts.

In Balasore I have had few complaints from the estates belonging to the Mandals of Chinsura than from those owned by Uriya zamindars. Several prominent zamindars of Orissa at the beginning of the settlement proceedings spared no pains to oust raiyats from their lands in order to get as large a record of nijchas as possible.

To award the palm for management is invidious, but setting aside the Government **Khas Mahals** and the **Wards'** estates the best managed estates in the district undoubtedly belong to Babu Kailash Chandra Rai Mohashil of Dehurda.

In Puri little can be said about management. Half the area was held khas during the term of Settlement owing to the recusancy of the Paikpara Raja in Serai, Chaubiskud, and Rahang. The mismanagement by the Raja of Puri in Lembai and by the old zamindars of Kotdes have been notices elsewhere in the report.

Since the last Settlement the greatest moderation has been shown in the working of the Revenue Sale law, and the practice has been grown up of accepting payment even at the eleventh hour, unit default has come to be regarded almost as a matter of course.

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* For Puri the periods are 1858-67, and &c, down to 1888-97.

* From 1842 to 1855.

* From 1855 to 1868.

The number of sales in different decennial periods is as follows :-

PERIOD		NUMBER OF SALES			REVENUE OF STATE SOLD		
		Cuttack	Puri	Balasore	Cuttack	Puri	Balasore
					Rs.	Rs.	Rs.
1845-54	.....	.....	5	11	.....	2,823	.....
1855-65	.....	34	2	18	12,258	478	.....
1866-75	.....	18	1	....	1,857	155	.....
1876-85	.....	45	3	22	2,948	1,387	2,968
1880-95	.....	109	116	17	16,233	87,514	3,159
1896-99	.....	79	.....	8	9,301	....	217

The figures have been completing the Collector's Offices, and though the actual number of sales is at no period very large, the great increase towards the end of the century is very remarkable, and I am unable to account for it satisfactorily.

I can only suggest that it is due to the multiplication of proprietors, estates being brought to sale because one or two of the co-shares have defaulted. Probably also proprietors with encumbered estates have found that they get a better price at a sale under Act XI of 1859 than they would if they had to sell it privately.

There is no doubt also that proprietors feared the new settlement. They had no reason to suppose that Government would take less than 65 per cent. of the assets in ordinary areas, i.e. areas having no special disabilities, and 60 per cent. in flooded areas ; with these expectations, zamindars locked with dismay on the curtailment of their incomes. The unlocked - for liberality of Government and the Secretary of State in not only taking 50 to 55 per cent. as revenue, but in making the term thirty years, has given great confidence to the zamindars. It is possible that if this liberality could have been announced ten years ago, some zamindars might have struggled on to the end of the Settlement.

Nothing shows more clearly the increased security of tenure and the lighter assessment enjoyed by the land - holding classes under British, as compared with native, rule than the price paid on sale of proprietary right.

Mr. Stirling tells us that after carefully examining a vast number of bills of sale of old date, he could confidently affirm that from one - fourth to one-half of the jama was the ordinary selling - price of a zamindari or taluk.

For a few years after the accession of the British the numerous sales occasioned a glut in the market, and valuable estates changed hands for absurdly. Mr. Stirling says that in 1821 the average selling-price was from 50 to 100 per cent. on the **sadar jama**, or from fifteen to twenty years' purchase of the recognised profits, and some estates fetched much larger prices.

On the conclusion of the thirty years' settlement prices rose rapidly, and from 1840 to 1849, 94 estates brought to sale for arrears of revenue fetched an average of four-and-a-half times the sadar jama, or about ten years purchase of the admitted profits. In Balasore, between 1829 and 1842, the five estates sold realised only three times their sadar jama, while eleven estates sold between 1842 and 1855, fetched nine-and-a-half times the sadar jama.

The prices paid at revenue sales from 1855 to the present date are as follows, the price being expressed in multiples of the sadar jama :-

Year			Cuttack	Puri	Balasore
1855-65	.....	.....	12	15	9
1865-75	.....	.....	20	18	Not available
1876-85	.....	.....	10	10	30
1886-95	.....	.....	8	2	14
1896-98	.....	.....	8	....	26

* Paragraph 84 of his minute.

* Mr. Collector Gouldsbury's repor of 4th December,1850.

* Owing to the low price for Kotdes.

The falling off in prices in later years is difficult to account for, unless the reason was insecurity.

In the period from 1886 onwards it is natural to account for it by the expectation of the coming resettlement, but I cannot believe that this can have been an important factor so far back as 1876, and I can only suggest that many sales made in the last few years were of estates of which the fertility had, from various causes, been impaired and of which the **sadar jama** left a comparatively small margin of profit, It must be borne in mind that ten years' purchase of the **sadar jama** means twenty times the gross annual profit left to the zamindars at the last settlement, and it is by no means a low price, and we know that in some instances the estates sold had been seriously affected by deposits of sand.

In Puri the low price in 1880-95 is due to the inclusion of figures for the Kotdes estate, the greater part of which is maurasi, so that twice the revenue meant nearly ten times the zamindar's profits even if he collected all dues from the **sarbarakhars** and **muqaddams**.

In Cuttack five estates for which the new revenue had been settled were sold for arrears of revenue in March, 1899. The revenue was Rs.139 and the price realised, Rs.2,245 or nearly fifteen times the **sadar jama**.

The above figures are for forced sales, but they are borne out by the record prices for private sales. In Balasore the average prices expressed in the number of years' purchase of the Government revenue were :-

1840-50	.....	.....	7	1871-80	.....	.....	31
1850-60	.....	.....	18	1881-90	.....	.....	24
1861-70	.....	.....	20	1891-96	.....	.....	16
After execution of kabuliyat				....	.....	.....	22

It will be seen that here, as in the case of revenue sales, there was a falling off during the last few years of the settlement due to the natural anticipation of the enhancement of revenue and curtailment of profits, but that after execution of kabuliyats there was a recovery due to the lenient forms offered.

In Cuttack figures are not so complete, but it is found that in the 503 principal estates sales involving the transfer of Rs.2,04,000 of Government revenue are recorded, and the average price is one and-three-quarter times the revenue. Since the settlement twelve times the land revenue has been paid in sales of shares with an aggregate revenue of Rs.96,000.

The prices paid in Cuttack have not been much affected by the anticipation of enhancement at the new settlement, some of the highest prices having been given in the last few years.

Figure compiled at attestation show that since 1885 estates and portions of estates, with a total area of 17,414 acres, changed hand for Rs.1,35,990, or, about Rs.7-13 per acre (say ten times the **sadar jama**), and the number of years purchase for such of these estates as figures were available for is over 13 1/2. The big estates of Padmalabhpur, in Dihi Arakhpur, was recently sold at an execution sale or Rs.69,000, or twenty times the revenue, while a three Anna nine pie share of taluk Gopinathpur has, in the last five years, been old for Rs.19,013, or thirty-five time the **sadar jama**.

The registration returns quoted in paragraph 272 show the average price paid for whole estate in Cuttack from 1890 to 1896 to be over seventeen years purchase, and since then over eleven years' purchase of the **sadar jama**.

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* Including foreed sales.

Mr. MacPherson tells us that in Puri 21 estates with a revenue of Rs.3.385 have been sold, chiefly in the last twenty years, for Rs.55,510 or at about sixteen and-a-half year's purchase of the **sadar jama**, and that these estates are mostly in the worst parts of the district.

I conclude that during the latter part of the settlement the selling value of the larger estate varied from ten to twenty times the **sadar jama**, and that small portion of estates containing much nij-chas land might fetch their to forty times, the old revenue.

It is too soon to tell the effect of the enhancements of the revenue on the selling price of landed property. There is however, no doubt but that much more severe enhancement was expected, and that the lenient terms accorded have strengthened the market. In Balasore, Mr. Kingsford instances the case **Killa Patna** sold in 1897 for Rs.90,000 or one hundred and eighty eight times the revenue. This is, however, hardly a fair example as the estate until it changed hands was **"Killajat"** (see Chapter XXIV, Paragraph 610) and the revenue had not been altered since the beginning of the century. The revenue even after enhancement is only Rs.2,406. Three other estates with an aggregate revenue of Rs.1,033 have also been sold for twenty-two times the new revenue.

Under the Hindu rulers every village was a complete social and political unit with its own half hereditary and half elective officers, who administered its internal affairs with the assistance of the council of elders and acted as its spokesmen in all dealings with occasionally found but this was only where for want of suitable house sites or other reason, no respectable cultivators cared to make it thus permanent resent ; such villages were known as pahikasht or cultivated by migratory raiyats, or as bechapari, i.e. without houses.

The most important of these village officers was the headman or padhan whose office was generally hereditary but who appears sometimes to have been elected by his co-villagers. He was responsible for the payment of the Village revenues to his superior, the divisional head, and in return was supposed to hold a twentieth of the land in cultivation free of assessment, and probably collected small contributions from his co-villagers. With him was associated the village accountant who was similarly paid by a grant of land.

Under the Moghul settlement as the superior officers crystallised into talukdars so the village headmen and accountants tended to become land - holders, and they are now found in many villages as proprietary tenueholders under the names of (1) **Muqaddams**, (2) **Padhans**, (3) **Pursethis**, (4) **Sarbarahkar**.

Their tenures, as also those of the more recently created **kotkharidadars** and **shikmi zamindars**. I shall describe in the following paragraphs. They must be understood to be applicable only to the Moghulbandi or **khalisa area**.

The **Muqaddams** are the old Hindu village headmen or padhans, under a Mahomedan name. They are of three Classes. (1) Maurasi or hereditary, (2) Kharidadars, those who purchased an hereditary right from the talukdar or, maqaddam (3) or Zati, ie.e., appointed by the people of a village as their representative, or, sometimes, created by a zamindar.

The right of these muqaddams are thus described by Mr. Stirling paragraph 45 of his Note of 1821. -

"The natives of this district have still unquestionably a deep-rooted

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* Bisoi

* His "Heta"

* Bhoi, also under other names as Kothkaran, Baithakaran, Sethi,

* An Arabic word meaning 'Headman"

feeling that the hereditary or Malik Muqaddams had rights which ought not to have been suffered to pass away unnoticed and unprovided for. They are emphatically called watundars (i.e. holders of their own land) and boonyad wals (men of the foundation), their jagir or nankar lands are in many parts termed pitraleh or ancestral, and what is of more importance than names the fact cannot be denied that they exercised precisely the same rights in selling or mortgaging the whole or a part of their muqaddami, in creating the khuridaghi tenure on a small scale, and granting inconsiderable portions of charity lands as the talukdars did, though the countersignature of the latter to their kabula was, perhaps, necessary. In the bills of sale, too, disposing of a muqaddami, all the rights arising from the village management, the perquisites on pasture grounds, gardens tisheries, timber & c. , taxes on trades, &c., are transferred as fully and absolutely as on the sale of a talukhri. The hereditary muqaddams if now asked how they can prove that they have any right, will answer : our muzaddami tenure is maurasi,. We have inherited it from our ancostor from time timmemorial. We have transferred and bought shares. We have sold pieces of ground and granted land free of rent. The Kharidadars and Khyratdars are forthcoming. Let them be asked from whom they obtained their land".

Of these tenures may were separated from the control of the talukdars either as a special favour or on payment of some consideration, or because of extortion or abuse of his authority by the talukdar ; such separated tenures were known as 'Mazkuri' (mentioned) and their holders being allowed to engage directly with Government for the payment of revenue have now been merged in general body of zamindars.

For the rest the muqaddams were, during the early years of British rule somewhat neglected, the revenue officers being generally imbued with the idea of the complete proprietorship of the malguzar and unable to conceive of any participation in his rights by a inferior tenureholder.

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* An attempt is genrally made in the vernacular accounts of rthe last Settlement to reserve the term malikana to muqaddams' allowances while sarbarahkars' allowances are recorded as kharcha.

In 1804 we find Mr. Collector hunter writing that there is very little distinction between a zamindar and muqaddam ; and so well were the incidents of the latter tenure understood that in deeds creating a muqaddami tenure no further description was considered necessary than the name afforded, the only qualification being an occasional reservation of the right of alienation.

Between 1804 and 1820 the talukdars were doing their best to get rid of the intermediate tenureholders, and as the latter's rights were undefined and they were always referred for redress to the Civil Courts they generally went to the wall.

Mr. Stirling, however in 1821, and after him the distinguished offers who made the last settlement strongly advocated the claims of the muqaddam and in that settlement their rights were recognised and finally determined.

As regards their relations with their land-lords and their own circumstances the points of which I propose to treat specially are -

(1) Right to malikana and re-entry.
(2) Subdivision of proprietary tenures.
(3) Transfer of proprietary tenures.
(4) Collections from proprietary tenure-holders.
(5) Effect of the recent Settlement and of the introduction of the Tenaney Act.

This last heading is inevitably somewhat mixed up with those preceding it.

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* Procedings of Board of Revenue of 12th January 1838 in Taluk Bamanpur.
* See Appendix H.A., H.B.H.C.
* Tanki 3, Koth Kharida 16.

The muqaddams and padhans were considered to have a quasi proprietary right in the soil and were generally allowed 5 per cent as **malikana** besides 15 to 20 per cent. for the expenses of collection. While the **sarbarahkars** got only the latter amount. Mr. Lewis of the Board of Revenue laid down the distinction in the clearest terms.

He wrote :-

"**Muqadams** stand on a different footing (i.e., from sarbarahkars) ; they have a right of property apparently in the soil, which having been conceded, is of course of saleable property ; and in considering the allowance made to them the difference here noted should never be lost sight of. The surbarkar I would allow 10 per cent. for the risk and trouble of collecting, the , muqadam 5 per cent. More on account of his partial proprietary rights.

The **padhans** retained in the event of recusancy 5 per cent upon the jama, and were conceded the right of re-entry on the renewal of the Settlement whereas in the event of a **muqaddam or sarbarahkar** refusing to hold his village at the jama assessed at a Settlement he would be dispossessed and his village taken **hastabud**. The reason for this exaltation of the padhan above the **muqaddam** is unfathomabe, but such were the decisions of Government. **Kharidars** enjoyed the rights of the persons from whom they purchased. As proprietors of the soil they obtained all the malikana which the zamindar if the tenure was of the first, or the **muqaddam** if it was of the second class, would have had l and the zamindar or **muqaddam** received only collection expanses. In the event of recusancy a **kharidadar** of the first class was entitled to a malikana of 5 per cent. , while the zamindar was placed in possession and got 25 per cent. and he had a right to re-entry at the next Settlement ; but a second class tenure was destroyed.

The following table shows the number of tenures and the number of recorded co-sharers in the three districts at the last and present Settlements.

NAME OF TENURE	Cuttack				Prui				Balasore			
	No. of tenures		No. of tenures holders		No. of tenures		No. of tenures holders		No. of tenures		No. of tenures holders	
1	2	3	4	5	6	7	8	9	10	11	12	13
	Last	Present	Last	Present	Last	Present	Last	Present	Last	Present	Last	Present
Muqaddmi	537	539	791	6,850	491	486	3,000	680	...	113	...	829
Sarbarahkari	339	281	420	2,314	198	211	...	1,184	...	731	...	2,525
Padhani	1	2	1	8	279	259	600	3,507	...	...	...	...
Puresthi	11	18	24	86	...	...	...	...	...	...	...	...
Kharida Shikmi	2	2	2	11	...	...	...	...	...	39	...	188
Zamindari	241	166	109	1,293	...	5	...	27	...	2	...	15
Other	7	69	19	36	...	...	...	...	...	...	...	...
Total	1,138	1,131	1,366	10,598	968	961	3,600	11,568	...	885	...	3,557

DISTRICT	Average number of transfers per annum	STATES OF PURCHASES: Mahajans and money lenders	Zamindars	Propritary tenure-holders and batyaftidars	Ralyats	Others	Total Purchase Money
Cuttack...	470	27	63	272	20	78	7,800
Balasore..	836	45	139	453	136	63	58,360
Puri...	120	7	12	32	12	57	18,700
Total	**1,426**	**79**	**214**	**757**	**168**	**198**	**84,860**

It will be seen that the transactions are very numerous and that they involve the payment of large sums. About half the sales are to other prasons in the same class, a good many purchases being also made by zamindars, but comparatively by money lenders or traders.

There does not appear to have been any marked increase in the number of transactions during the last decimal period, and it may be assumed

* From the Sanskrit Sthaniya = the place, Also known as "Khudkasht"

that the Settlement has had but little effect. Figures as to the price paid per acre are not available in the registration returns ; but from the figures compiled during reattestation I find that the price paid varies in Cuttack from Rs.27 to Rs.141per acre and averages Rs.69 for **bazyafti** and Rs.97 for **kharida jamabandi lands**.

In Balasore Mr. Kingsford puts the average price before the recent enhancement of bazyafti rents at Rs.40 to Rs.80 per acre and now at Rs.50 to Rs.55 per acre.

In the earliest times of which we have any historical knowledge we find the cultivators broadly divided into two groups - the **Thani** or resident and the **pahi** or non resident. **Thani** raiyats were the burgesses of the village. Their houses they held rent free ; for their ancestral lands they paid a fixed rent determined by custom or the decree of the ruling power. They had a voice in the distribution of land by the headmen , and could take up and cultivate at privileged rates any field lying waste or in the possession of a nonresident raiyat. In the case of rent - free grant ; situtated within his village, the property of priests or others who could not hold the plough themselves the **thani** aiyat had generally the preference as under - tenant or **metayer**. He had in common with his brother guildsmen, the right to use the pasture, the thatching grass and the fire-wood jungle. His right of occupancy was hereditary and his credit with the village money - lender stood higher than that of the nomadic raiyat who had nothing to lose by absconding. For all these privileges the thani raiyat paid very highly as it was on him that every increase in the land revenue ultimately fell. The **pahi** raiyat in these days when land was plentiful could oppose a demand for an increased rent by simply throwing up his holding. This the **thani** raiyat could not do without forfeiting his home, his position and all that was most dear to him so that he generally stayed and paid unless he was strong enough to resist the claim for enhancement. In this connection I would quote the following passage from Mr. Stirling's Minute paragraph 66 on the land tenures of Orissa :-

It appears to me a clear established principle in Cuttack and it is scarcely denied by any whose notions of landed property have not been altogether newly modelled by the British laws and regulations, that the superior holder, whether **maquddum** or **taluqdar**, has no shadow of a right to dispossess the thani raiyat from his land so long as he pays the rent demandable, and also that rent was formerly fixed by act of the Government on consideration of the quantity of soil tenanted by each, its produce and value in reference to which the zamindar's payments have been adjusted and consequently that he has no title whatever to require an increase. The unprosperous state of the raiyats, however, for a long series of years must necessarily have introduced numerous alterations and fluctuations. Where a resident cultivator has broken down from misfortune or oppression, the zamindar must of course lower his rents temporarily, if he wishes to prevent his absconding or starving, a relief which would render him able to an equivalent subsequent increase, and when a cultivator cannot or will not pay his rent, it has been at all times customary to make over temporarily his lands to any other person who may be willing to take charge of them. The interests of the raiyats are too little understood in Cuttack to enable me to say what period of recusance to cultivate or inability to pay would involve a final forfeiture of the title of fixed occupancy, supposing it could over be the interest of the zamindar to impose such a penalty. With respect, too, to the payment of a fixed **jamabadi** or quantum of rent for the same quantity of land, the advantage is merely nominal, as the person who collects has long exercised the power of imposing additional burthens in a variety of shapes and names, which the raiyat cannot resist the payment of and many of which become in the course of years consolidated with his established rates.

The British conquest made no difference to his rights, and the settlement of 1836 only stereotyped them by supplying an accurate record of the thani lands and of the rent that could be lawfully demanded for them.

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* As in taluk Chaudakulat and Pargana Jajpur

An attempt was made in the early stage of that settlement to adjust the rents with reference to the quality and productive power of the land the fair rent being assumed to be half the net value of the produce ; but after much correspondence this attempt was abandoned and existing rent were generally accepted enquires being made into the case specially high or specially low rent. In some estates too where the rent ; appeared exorbitant their whole level was altered by the higher authorities and a fair average rate fixed by a stroke of the pen. So every raiyat was given a lease showing his land ; his rent, the period for which it was fixed and the land left unassessed (minha) and the possession of his patta gave to the holder almost entire immunity from illegal demands or dispossession.

The general result of the last settlement (so far as thani raiyats are concerned) was summed up by Mr. Mills in 1847 as follows :-

There was no difficulty in ascertaining the actual rent paid by the **thanis**, as it was notorious that they were almost invariably assessed at a rate infinitely higher than the produce of their lands or other concomitant advantages of residence could enable them to pay.

(See my No.2776 of 31-12-97, Appendix A, No.13 to this report)

The next step in the development of the rights of tenants was the passing of Act X of 1859, which was intended to substitute for the old division between **Khud kasht** and **Pahi kasht** that of resident and non-resident raiyats, giving to all who could prove occupation for twelve years a right of continued occupancy. This however the **thani** riyat already possessed, and the Act only affected him in so far as it defined the procedure to be followed by his landlord for the recovery of arrears of rent.

The incidents of the tenure as they stood after the passing of this Act appear to have been as follows :-

(1) Right of occupancy so long as the rent was regularly paid. If at the end of the year the rent remained in arrears the zamindar could bring a suit for the tenants ejectment and turn him out if the arrears were not paid within fifteen days of the date of the decree (sections 21 and 78, Act X of 1859).

(2) Right to the produce of a crops and the fruit of all trees growing on his land.

(3) Right to the use of the village pasture land and to take fuel from jungle.

(4) Fixity of rent for the term of settlement : this was secured them by their leases.

(5) Right of inheritance according to the Hindu law. The land could be divided among the heirs, but the landlord was not bound to recognise any division of therent (Section 27, Act X of 1859).

(6) The tenure was not transferable by sale or gift.

(7) The raiyat could surrender his holding by giving notice of his intention in writing to the landlord or his authorised agent, before the month of Chaitra of the year preceding that in which the relinquishment was to take effect. If he failed to give such notices he was liable for the rent of the land for the ensuring year (Section 19, Act X of 1859).

(8) He was not entitled to remission of rent on account of damage by flood, drought or other calamity unless a provision to that effect was entered in his lease. Such provisions were found in Parganas Rahang, Serai Chaubiskud, and Lembai of Puri.

(9) The tenure was not vitiated by sale of the parent estates for appears of revenue of otherwise, and could only be terminated by the relinquishment of the raiyat, by his ejectment, by his accepting a permanent reduction of rent, or by unauthorised alienation of the land. These conditions subsist practically unchanged up to the present day, and the only conditions that are open to discussion or require any special comment are the sixth and ninth. The right to the fruit of trees and the use of pasture lands will be

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* Collector to Commissioner, No.2318 G, dated 12th November, 1892.

considered when treating of raiyats in general. As regards the eighth condition Mr. Wilkinson is responsible for the existence of the provision referred to. We find it also in Khurda.

In paragraph 67 of his Minute of 1821, Mr. Stirling Writes :-

After the most careful enquiry I have been unable to discover any instances of a royt selling or mortgaging his lands, nor can I meet with any one who thinks they possess such a right, or is aware that such has ever been exercised in practice.

No enactment has ever given to the raiyats the power of alientation that they did not then possess, but sales are very common indeed, and several Assistant Settlement Officers have expressed an opinion that they can be made without the zamindar's consent. Mr. Stevenson when Collector of Cuttack, expressed the opinion that thani holdings are now transferable, basing his conclusion on the Cuttack District Judge's order in Appeal Case No.33 of 1873 and on paragraph 6 of the Bengal Government's letter No.1166 of the 21st May 1874, Mr. Me Person, Assistant Settlement Officer in charge of Puri, write as follows :-

But the transfer of **thani** rights had become a matter of every day occurrence even before resettlement operations began. Babu Nandakishore Das (paragraph 104 of his report notes that transfer with particularly common in the has Mahals probably on account of the proximity of the Government estate of Khurda, in which the right of transfer was admitted by Government Order No.2553 of 17th December, 1874. Babu Akshoy Kumar Sen, Assistant Settlement Officer, found that it was similarly common in Paragana Lembai, which also adjoins Khurda Subdivision. In Kotdes Mr. Nathan found in 1890-92 that " the sale of thani lands was a matter of daily practice and that as a rule without any reference to **Muqaddams or zamindars**" / There was however,

always a tacit admission that the landlord's consent was legally necessary to such a transfer and this was expressed in the shape of a fee., usually amounting to two annas per rupee of purchase - money, paid when the new purchaser applied to have his name entered in the zamindar's rent roll".

In Cuttack, thani rights appear to be commonly sold without the previous sanction of the proprietor, and the latter appears in most parts to invariably recognise the new tenant on payment of the customary mutation fees. As the subject of importance I herequote the opinions recorded by some of the most experienced Settlement Officers in the district :-

Name of Officer	Pargana where working	Opinion
Babu Jotendra Mohan Sinha	Deogan, & c ...	The landlord's consent is not necessary at the time of sale, but when the mntation is recorded in his sherista a mutation fee is charged.
Rabu Nabin Ch. Kar	Matkatnagar, & c ...	Thani rights are transferred, and the zamindar usually consoents.
Maulavi Mahamed Chainuddin.	Kuhunda Jajpur, & c ...	Thani holdings can be sold with the zamindar's permission.
Babu Beni Madhab Chatterji.	Benahar ...	Rights of occupancy of thani raiyats are not transferable without the zamindar's consent, but they are freely sold and purchased by actual cultivators.
Babu Jogendra Narayan Mitra	Assureswar ...	Rights of thani riyats are transferable with or without the consent of the landlord.
Babu Sriram Ch. Bose	Utikan, & c ...	Thani holdings are not transferable without the zamindar's consent.
Babu H.C. Rai	Balubisi	Thani cannot transfer without the zamindar's consent, purchasers of thani are recorded as pahi.

* See also Appendix A (13).

* As in Olas Pargana and parts of Sailo.

* See Appendix AA, BA, CA. One-half of the area in Column 4 is probably pure thani.

Name of Officer	Pargana where working	Opinion
Mr. Taylor	Bakhrabad	Thani lands are sold without the zamindar's consent but the zamindar refuses to record mutation without the usal fees though he will take the rent from any one who brings it
Babu J.M.	Jajpur	In practice thani raiyats often sell their lands without the zamindar's consent. The transferee, however, subsequently purchases the zamindar's consent either by cash payment or otherwise. The zamindars are well aware of their right and always refuse to recognise such transfers unless they are paid.

My experience is that **thani** is freely sold and that it is only in a few Pargana that the purchasers are recorded as **pahi**. Indeed, there are many cases in which **thani** holdings have been sold by civil courts in execution of decrees and the new tenant has been perforce recognised by the zamindar. In all cases of voluntary sale the zamindar before recognising the transfer requires that all arrears off rent should be paid up in full, and further demands from the vendee a resume that may amount to one-fourth of the price. In some cases as in Kodinda he also takes from the vendor a salami of a couple of rupees. In other parts the zamindar generally are contented with the payment of the arrears and a couple of rupees as **dakhil kharij salami** from either party.

In conclusion, we may say that **thani** is now - a - days transferred, but that the zamindar does not record the transferee in his **sherista** as thani raiyat without a fee.

Whether any length of prescriptive possession could ever turn a **pahi** into a **thani** raiyat history does not tell us ; my own impression is that by entries in settlement record from time to time the number of thani raiyats was increased and that the village community and the **padhan** in the earliest times and in later times, the muqaddam or zamindar decided the matter. On this point Mr. Stirling had to confess ignorance, and it is fairly certain that since his

day no few acquisition of the thani right otherwise than by the acquisition of a **thani** raiyat's lands has been recognised. On the other hand many causes, notably the great famine of 1865-66, have combined to destroy pre-existing thani rights in large areas.

The assessment of **thani** lands at the last settlement was high averaging in Cuttack Rs.2-13-0 in Puri Rs.2-1-3 and in Balasore Rs.1-10-10 per acre. Rents are estimated to have absorbed from one-half to one - third of the produce of an average harvest and as cultivation extended and the people multiplied the privilege of taking up other land at low rate was necessarily curtailed. Even before the zamindars had executed their kabuliyats for the thirty year settlement many raiyat had surrendered their thani rights rather than bind themselves in property to payment of the high rates fixed, and in the famine years of 1866-67 very large numbers were forced to throw themselves on the mercy of zamindar. Some alandented their land and fled, and came back later on to be readmitted as **pahiraiyats** ; other gave up their **thanipallas** in return advance ; other no duoubt though of this there is less record-were eject altogether from there land on failure to pay their rents. The wonder is not that the area held by the thani raiyats should have decreased, but that so much should survive to the present day. Taking the three districts we find the change to have been as follows :-

DISTRICT	At least settle-ment	Pure thani now recorded	Area of thani pahi	The sum of column 3 and half of coulmn 4	Percentage of column 5 on column 2
Cuttack...	133,700	41,700	84,000	83,800	62
Puri	96,900	35,200	63,000	66,700	66
Balasore...	107,100	45,900	Nil	45,900	43
Total	**337,700**	**122,800**	**147,200**	**196,400**	...

The survival of an area of **thani** comparatively so small in the Balasore District is due to the enormous extension of cultivation, on account of which the separate area and rent of thani tends to disappear also to the strength of the zamindars and to the severity of the famine of 1866 in that district.

After Orissa was separated from Bengal, Considerable difficulties were felting ascertaining the particular provisions of law applicable to a large number of rights and interests and therefore, it was considered desirable to frame a self-contained code of provisions relating to landlord and tenants and adopted to local conditions. With this object in view, the Orissa Tenancy Act, 1913 (Bihar and Orissa Act, II of 1913) was enacted. It got the assent of the Governor. General on 11 June, 1913. The act consists of 252 sections chapters. It mainly deals with classes of tenants (Chapter-II), Rayats (Chapter-V, VI & VIII), Tenure holders (Chapter-III), and general provisions as to rent (Chapter-IX). The act has been amended by the provincial and state Acts in 1914, 1916, 1929, 1938, 1944, 1946, 1947, 1948, 1950 and 1959.

This Act come into operation in the district of Cuttack Puri and Balasore with effect from 12 September 1913, The main objects of this Act were -

(a) to consolidate, simplify and rearrange the greater part of statue law relating to landlord and tenant in the district of Cuttack, Puri and Balasore with an area of 8000 sqr. miles of which 6000sq. miles were Temporarily settled and 2000 sq. miles were permanently settled area ;

(b) to restore to the holders of sub-proprietary interests and of resumed revenue free lands, the position which they held for nearly a Century before the extension of Certain provisions of Bengal Tenancy Act, 1885, to the said districts in 1891 and later years ;

(c) to secure raityats in these districts in the enjoyment of their existing rights, both statutory and customary ;

(d) to make a definite extension of the area held as private land by proprietors and sub-properietors in consideration for the security of tenure to be afforded to their tenants in lands reclaimed from waste ;

(e) to improve the procedure for the recovery of rents due to proprietors and sub-proprietors ;

(f) to remove, sofar as possible, ambiguities, defects and anomalies which are known to exist in the present and law ;

(g) to prevent encroachment on lands over which communal rights exists.

During the revisional settlement operation, it come to the notice that land lords were claiming to record in their own name land alleged to be their cultivating possession and were extracting agreement from the tenants to prevent accrual of occupancy rights. Besides a large majority of them were opposing reclamation of waste land by resident and non-resident cultivators. Further enquiry also revealed that certain aspects of the Bengal Tenancy Act were illadopted to local customs. Act 10 of 1959 and the connected Acts contained a large number of defect, especially in the matter relating to sale of tenancies. Provision of the law on the following important subjects either did not exist or became ineffective ;

(a) the making of improvement;

(b) the acquisition by a land lord of portions of a holding for building or other purpose;

(c) the surrender and abandonment of holdings ; and

(d) contract and custom.

With a view to obviate all the anomalies and to frame a self - Contained code of provisions, the Orissa Tenancy Act was passed to fulfil the objectives mentioned above. [22]

22. Dash Giridhari, Nabajeeban Press, The land system and Land Reform in Orissa, 1989, P-132.

"The Orissa Tenancy Act also prescribed a number of beneficial clauses to safeguard the interest of under-riyats. Under Section 237 of the Orissa Tenancy Act, a railyat could acquire occupancy right by custom or usage. Section 56 limited the rent payable by him ; so long as he paid the rent he was entitled to retain possession of the land settlement with him".

Acts were made for the abolition of Estate in different years in different phases by this it is meant all the Estates were not abolished at a time. These were vested in the state from time to time from the year 1952. Before the implementation of the Act there were about 292091 estates. The table below shows the number of proprietary and intermediary Estates.

TABLE - 2

District	No. of Proprietary Estates	No of Incrmediary Estates
1. Cuttack	8967	1,13,612
2. Puri	627	82,250
3. Balasore	3417	71,827
4. Ganjam	54	1,000
5. Koraput	04	1,000
6. Phulbani	01	X
7. Mayurbhanj	01	9,149
8. Sambalpur	25	X
9. Sundargarh	11	128
10. Bolangir	08	X
11. Kalahandi	07	X
12. Keonjhar	03	X
13. Dhenkanal	X	X
Total	**13,125**	**2,78,966**

* Source Administration Enquiry Committee Report (1958) Vol.I, Page-67.

In the following years 1952, 1953, 1954, 1955, 1956, 1959, 1963, 1970 in different phases by notification the different Estates abolished and vested in the States. The Estates Abolition was completed in 1974. It is seen 425720 Estates were vested in the Government. The table below shows the total number of Intermediary Estates abolished.

TABLE - 3

District	No. of Proprietary Estates	No of Incrmediary Estates
1. Cuttack	1,96,578	1,96,578
2. Puri	1,06,113	1,06,113
3. Balasore	84,691	84,691
4. Mayurbhanj	6,783	6,783
5. Ganjam	9,551	9,551
6. Koraput	775	775
7. Kalahandi	1,701	1,701
8. Phulbani	471	471
9. Bolangir	212	212
10. Keonjhar	3,419	3,419
11. Sambalpur	4,135	4,135
12. Sundargarh	353	353
13. Dhenkanal	10,938	10,938
Total	**4,25,720**	**4,25,720**

1.3. TAHASIL ADMINISTRATION IN ODISHA

EVOLUTION OF ANCHAL SASAN

After amendment of various Acts for Estates abolitions the Government of Orissa appointed a committee to suggest an integrated scheme of reforms on Land Revenue and Land Tenure in Orissa. This Committee is known as the Nabakrushna choudhari Committee. The Committee suggested and reported for reformation in three parts -

(i) Administrative

(ii) Legislative

(iii) Miscellaneous

In its administrative part the percussion was made for the appointment of Land Reforms Commissioner as the Head of the Department in the Revenue Ministers protfolio. The designatory Commissioner acted as a member of the Estates Abolition Advisory Committee.

The Legislative part of the report acted as the mighty sword towards the evolution of **ANCHALA SASAN**. In this part the Committee recommended for the creation of **Anchal Sasan** for the management of vested Estates. Accordingly the **Anchal Sasan** had two parts -

(i) An elected Sabha known as **Anchal Sasan,**

(ii) An Executive Officer known as **Anchal Adhikari.**

Thus, the **Anchals** were formed for the management of the vested Estates. The **Anchal** Adhikari acted as the Head of the Administrative branch of **Anchal** Sasan to manage the Estates in the **Anchal**. This was carried on by the Orissa Anchal Sasan Act 4 of 1965. In this evolutionary establishment of Revenue Administration at the initial stage 61 Anchalas were constituted in November 1952. The Table below shows the **Anchals** created as such.

Date of Notification		Name of the Anchal	District
27-11-1952	1	Darpan	Cuttack
	2	Dampara	Cuttack
	3	Sukinda	Cuttack
	4	Kujanga	Cuttack
	5	Aul	Cuttack
	6	Jaleswar	Balasore
	7	Khariar	Kalahandi
	8	Lanjigarh	Kalahandi
	9	Thuamula-Rampur	Kalahandi
	10	Bolangir	Bolangir

Date of Notification		Name of the Anchal	District
	11	Sonepur	Bolangir
27-11-1952	12	Sambalpur	Sambalpur
	13	Bargarh	Sambalpur
	14	Padampur	Sambalpur
	15	Jaharsuguda	Sambalpur
	16	Kuchinda	Sambalpur
	17	Anandapur	Keonjhar
	18	Kaliahata	Keonjhar
	19	Kaptipada	Mayurbhanja
	20	Panchara	Boudh-Phulbani
	21	Panposh	Sundargarh
	22	Bonai	Sundargarh
	23	Sundargarh	Sundargarh
01-06-1953	24	Paralakhemundi	Ganjam
	25	Chikiti	Ganjam
	26	Digapahandi	Ganjam
	27	Surada	Ganjam
01-06-1953	28	Aska	Ganjam
	29	Kodala	Ganjam
	30	Chhatrapur	Ganjam
02-06-1953	31	Koraput	Koraput
	32	Jeypore	Koraput
	33	Nawrangpur	Koraput
	34	Buriguma	Koraput
	35	Bisam Cuttack	Koraput
	36	Malkangiri	Koraput
	37	Rayagada	Koraput
	38	Nandapur	Koraput
	39	Umerkote	Koraput
	40	Gunupur	Koraput

Date of Notification		Name of the Anchal	District
24-08-1953	41	Sakhigopal	Puri
	42	Nimapara	Puri
	43	Pipil	Puri
	44	Chilika	Puri
	45	Khurda	Puri
	46	Bhubaneswar	Puri
07-09-1953	47	Balasore	Balasore
	48	Champanagar	Balasore
	49	Bhadrak	Balasore
	50	Soro	Balasore
14-09-1953	51	Kendrapara	Cuttack
	52	Pattamundai	Cuttack
	53	Cuttack	Cuttack
27-11-1953	**54**	**Jajpur**	**Cuttack**
01-05-1954	55	Salipur	Cuttack
	56	Jagatsinghpur	Cuttack
01-07-1954	57	Ghumsar	Ganjam
01-07-1954	58	Berhampur	Ganjam
07-07-1955	59	Ranapur	Puri
15-05-1956	60	Panchamukha Pragana	Cuttack
	61	Kanika	Cuttack

Accordingly Jajpur Anchal Sasan come into existence on 27th November 1953 in the District of Cuttack.

The Anchal Administration was carried on as the agency of Board of Revenue and the Government. But the Tenants were not satisfied by the Rate of law as it could not be able to make quick and convenient decisions. The Zamindary Administration was personal to which the Tenants were acquainted. The Staff of the Anchal Administration were not well trained, efficient and

23. Jajpur was titled as 'Yajna'

Since qualified Bramhins inhabited the place and performed Jagya. Biraja Mohatmya aserts that the Mother Goddess Biraja had come out of the Yajna while

cognigent of their duties and were not adjustable to the changed Circumstances. The law connected with Anchal Administration were not adequate. So the administration became unstabilized. Under these circumstances the Estates vested in the State Government were to be managed by the State Government. The Administration of these vested Estates were re-oriented. The Anchal Adhikaris were redesignated as Tahasildars, The Tahasildar was made responsible for the revenue and general administration of the then Anchal. Thus Tahasil Administration came into existence.

1.4. ADVENT OF JAJPUR TAHASIL

The history of the advent of Jajpur Tahasil is associated with the religious and political importance of the place [23]. The town of Jajpur owns its origin to the pre-Mahabharat age and has survived to reach the present position. Jajpur has her own historical basis to prove here as one of the oldest sacred urban heritages of Orissa. Jajpur was the political Capital of ancient Orissa for quite sometimes.

It is described in Kapila Samhita as the first among sacred and noblest places. It is named after the name of the presiding deity, Biraja as 'Biraja Kshetra', 'Biraja Nagar', 'Biraja Pitha', 'Maha Pitha', etc. The other name of Jajpur are 'Yajna Pura', 'Jajanagar', 'Jajipura etc. In the Bramha purna the Cultural and neligious descriptions Jajpur was found. Bayu Purana, Rudra Jamala, Bhrihat Nila Trntra, Kapila Samihita, Mohapitha Nirupana, Biraja Mohatmya, Markandeya Purana, Bramha Bhrihat purana, Bishnu Purana, Chandi Purana etc. also lights upon the gravious importance of the oldest sacred identity of Jajpur.

Modern Jajpur is situtated on the South bank of the Baitarani river,

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Kapila Samhita, Siva purana and Bramha purana Claim that the mythical Bramha had performed the Yajna. jajpur thus was the Centre of Spiritual education and Hindu Culture Mention of Biraja Kshetra in Mahabharat as a sacred place goes back to 2nd and 3rd Centruy A.D. Jajpur was a civilized locality in the ancien days and yajan was the measuring point of Civilization.

which separates Cuttack from Balasore district in 20.50 45" north latitude and 86.22" 56" east longitude. After the expulsion of the Budhists and the foundation of line of lion kings Jajpur was established in 473 A.D. [24]

This subdivision then comprised the police Circles (Thana) Jajpur, Dharmasala and Ulabar. It continual in 1870-71 a magisterial and revenue Court, a regular Police of 149 Officers and men and village watch of 1466 men. Jajpur, then comprised 86-63 square miles or 55446 acres, Chief Village Jajpur and sidheswar. The modern Urban area of Jaypur comprises four and half square miles. [25]

From Geographical point of View, Jajpur is a vast administrative Sub-division of the district of Cuttack in Orissa. Its climatic Condition is very rich for Health. As an important religious (Shaktism) Centre in India, it provides opportunity to the piligrims to visit 'Mother Goddess Biraja', the presiding deity. The Jajpur town in modern times, was established in 1859, with 86-63 square miles area, 55446 acres of land, 304 revenue estates and 9180 souls. [26]

According to the Nabakrishna Choudhuri Committee Report, asdescribed earlier Anchal's were formed for the management of vested estates. Accordingly, Jajpur Anchal Sasan came into existence on 27th November, 1953 in the district of Cuttack [27]. Thus, the Jajpur Tahasil ows its origin to the sovereign, Democratic, Republic India and it is one of the oldest in Orissa.

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24. Maddex, S.L., 1952, Final Report of the Survey and Settlement of the province of Orissa, P.145, Cuttack.
25. Hunter W.W. O.P. Cit., P-22.
26. Hunter, W.W. Op. Cit. P.222.
27. Sec. 3 of Orissa Estates Abolition Act, 1952. So also as amended in 1954.